

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

June 25, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Alvira v. Pampanga Food Company, Inc., et al. 2025-01484062	<u>Plaintiff Balbino Alvira's Motion for Leave to File Second Amended Complaint</u> Plaintiff Balbino Alvira moves for leave to file a second amended complaint to, among other things, add additional allegations and add two named plaintiffs and PAGA representatives. No oppositions have been filed. For the following reasons, plaintiff's motion is granted. Civil Procedure Code § 473(a)(1) states that "[t]he court may . . . in its discretion, after notice to the adverse party, allow, upon any

		terms as may be just, an amendment to any pleading” The court’s discretion will usually be exercised liberally to permit amendment of the pleadings. <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified. <i>Id.</i> As noted, neither defendant filed an opposition and thus neither defendant has identified any reasons the motion should not be granted or any prejudice from permitting plaintiff to file a second amended complaint at this juncture. Plaintiff to give notice and to file and serve a clean (non-redlined) copy of the second amended complaint attached as Exhibit A to the Hyun Declaration (ROA 185) by July 2, 2026.
2	City of Santa Monica v. The Insurance Company of the State of Pennsylvania, et al. 2022-01261243	<u>Defendant TIG Insurance Company’s Motion to Stay</u> <u>Defendant Santa Monica Police Activities League’s Joinder</u> Defendant TIG Insurance Company (TIG) moves for an order staying this action for one year. Plaintiff City of Santa Monica (City) opposes the motion, as does defendant The Insurance Company of the State of Pennsylvania (ICSOP). For the following reasons, TIG’s motion is denied. Defendant Santa Monica Police Activities League (PAL) filed a joinder in TIG’s motion on June 15, 2026, i.e., 7 court days before the hearing. ROA 927. A joinder is timely if it is served and filed within the time for noticing the particular motion at issue. <i>See, e.g., Persson v. Smart Inventions, Inc.</i> (2005) 125 Cal.App.4th 1141, 1176-1177; <i>Lerma v. County of Orange</i> (2004) 120 Cal.App.4th 709, 719. PAL did not file its joinder within the time for noticing a motion to stay, and its joinder is therefore denied as untimely. TIG argues the court should stay this action for one year because factual issues in this insurance coverage action overlap with the underlying PAL/Uller lawsuits, i.e., the City’s knowledge of Uller’s conduct and the City’s alleged liability for negligent hiring, supervision and retention. TIG states that one of its coverage defenses (the Expected or Intended Injury Exclusion, which precludes coverage for bodily injury “expected or intended from the standpoint of the insured”) requires fact discovery regarding the City’s knowledge of Uller’s conduct, an topic also at issue in the underlying lawsuits. As explained in <i>Great American Ins. Co. v. Superior Ct.</i> (2009) 178 Cal.App.4th 221: “When a declaratory relief action regarding the duty to defend depends on coverage issues, it may be that the resolution of those issues might prejudice the insured in the underlying litigation. ‘For example, when the third party seeks damages on account of the insured’s negligence, and the insurer seeks to avoid providing a defense by arguing that its insured harmed the third party by intentional conduct, the potential that the insurer’s proof will

prejudice its insured in the underlying litigation is obvious.’ (*Montrose Chemical Corp. v. Superior Court*, *supra*, 6 Cal.4th at p. 302, 24 Cal.Rptr.2d 467, 861 P.2d 1153.) Under those circumstances, the proper course of action is to stay the declaratory relief action until resolution of the underlying action. (*Id.* at pp. 301-302, 24 Cal.Rptr.2d 467, 861 P.2d 1153.) However, if the declaratory relief action can be resolved without prejudice to the insured in the underlying action—by means of undisputed facts, issues of law, or factual issues unrelated to the issues in the underlying action—the declaratory relief action need not be stayed. (*GGIS Ins. Services, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1493, 1505, 86 Cal.Rptr.3d 515.)

“A court considering whether to stay a declaratory relief action must therefore consider precisely which issues are to be litigated in order to resolve the declaratory relief action, and whether those issues are related to *factual* issues yet to be litigated in the underlying action. (See *Haskel, Inc. v. Superior Court*, *supra*, 33 Cal.App.4th at p. 980, 39 Cal.Rptr.2d 520.) If the factual issues to be resolved in the declaratory relief action overlap with issues to be resolved in the underlying litigation, the trial court *must* stay the declaratory relief action. If there is no such factual overlap and the declaratory relief action can be resolved on legal issues or factual issues unrelated to the issues in the underlying action, the question as to whether to stay the declaratory relief action is a matter entrusted to the trial court’s discretion.”

Great American Ins. Co., 178 Cal.App.4th at 235-36 (italics in original).

TIG has not demonstrated a stay is necessary here. The cases TIG cites involve declaratory relief actions in which an insured sought to stay an action to prevent prejudice to the insured. See, e.g., *Great American Ins. Co. v. Superior Ct.* (2009) 178 Cal.App.4th 221; *Haskel, Inc. v. Superior Court* (1995) 33 Cal.App.4th 963; *David Kleis, Inc. v. Superior Court* (1995) 37 Cal.App.4th 1035. Here, the plaintiff-insured (the City) opposes a stay.

TIG argues it will be prejudiced if the case is not stayed because it will be unable to obtain discovery necessary to oppose an anticipated summary adjudication motion by the City. Brief (ROA 906) 4:23-27; 11:3-8. As the City notes, the Code of Civil Procedure provides a remedy for a party unable to obtain discovery required to oppose a summary judgment or adjudication motion. Civ. Proc. Code § 437c(h) (“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due.”). TIG does not explain why the remedy provided in section 437c(h) is “impractical, inefficient, and detrimental to the

		defense of the underlying PAL/Uller Litigation.” Reply (ROA 931) at 6:21-22. TIG also has not persuasively explained why the entire action should be stayed. This case involves disputed coverage issues in addition to the applicability of the Expected or Intended Injury Exclusion in the TIG policy. In addition, the City seeks a coverage determination against another insurer (ICSOP), which opposes a stay. ICSOP argues a stay of the action would prejudice ICSOP’s ability to seek to resolve or narrow coverage issues that do not overlap with the underlying lawsuits, including the applicability of a sexual abuse exclusion in two of the ICSOP policies and the method of allocating settlements or judgments between policies where abuse is alleged to span multiple policy periods. ICSOP Opposition (ROA 918) at 4:14-21. TIG does not challenge in its reply ICSOP’s argument that these issues do not overlap with factual questions at issue in the underlying lawsuits. The City’s Request for Judicial Notice (ROA 920) is denied as the document was not material to the disposition of the motion. Plaintiff City of Santa Monica to give notice. <u>Status Conference</u> The court has reviewed the parties’ joint status conference statement filed June 17, 2026 (ROA 935). The status conference scheduled for June 25, 2026 at 2:00 p.m. in Department CX105 remains on calendar.
3	Cortina v. R & D Metal Fabricators Inc. 2025-01452225	<u>Plaintiff’s Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for approval of an \$80,000 PAGA settlement. Subject to plaintiff’s submission of the documents identified below, the court grants the motion as follows: No enhancement award to plaintiff; \$20,000.00 for attorneys’ fees; \$11,655.20 for attorneys’ costs; \$3,750.00 for settlement administration fees; and \$44,594.80 total PAGA penalties (\$28,986.62 to LWDA). Plaintiff is ordered to submit <u>by July 2, 2026</u> a proposed order and judgment with all exhibits attached (settlement agreement; any amendment(s) thereto; and notice letter). Section III of the notice letter should be revised to state the correct date on which the court approved the disbursements set forth in that section. The final accounting hearing is scheduled for <u>March 11, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator’s report at least 9 court days before the hearing addressing the status of the settlement administration, including

		the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
4	Hodgin v. Market Broiler Orange, Inc., et al. 2022-01284223	Off calendar.
5	Hodgin v. Market Broiler Orange, Inc., et al. 2023-01302833	Off calendar.
6	Mal v. Bank of The West 2022-01251706	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for final approval of a \$395,000 class action and PAGA settlement. The court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff; \$118,500.00 for attorneys' fees; \$14,763.55 for litigation costs (see No. 1 below); \$7,000.00 for settlement administration costs; and \$40,000.00 total PAGA penalties (\$30,000.00 to the LWDA). 1. Plaintiff's counsel previously sought \$14,771.48 in costs (see 2/26/26 Order (ROA 173) No. 6; Hawkins Decl. (ROA 168) Ex. C). The court stated in the February 26, 2026 order that nonrecoverable postage charges should be removed from that sum. Plaintiff states postage charges have been removed, but now seeks \$14,868.50 in costs. Supp Brief ¶ I.F. Plaintiff provides no explanation for why the amount of costs increased from \$14,771.48 to \$14,868.50 despite the removal of postage costs. The court accordingly awards \$14,763.55 in costs (\$14,771.48 less \$7.93 (postage) = \$14,763.55). Plaintiff is ordered to submit <u>by July 2, 2026</u> a revised proposed order and judgment (including the above amounts) and revised as follows: (1) paragraph 1 of the proposed order and judgment (ROA 176) should state the actual specific dates of the Class Period and the PAGA period, rather than "the earlier of either 120 days from the execution of this Agreement or the date of preliminary approval of this Settlement"; and (2) paragraph 21 of the proposed order and judgment should be removed as it is duplicative of paragraph 25. The final accounting hearing is scheduled for <u>March 25, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting

		hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service.
7	Mal v. Bank of The West 2022-01262144	<u>Status Conference in Case No. 2022-01262144</u> The parties' previously-filed joint status conference statement (ROA 97) states that plaintiff will seek dismissal of this case upon final approval of the class action and PAGA settlement in Case No. 2022-01251706. In light of the court's concurrently-issued order in Case No. 2022-01251706, the June 25, 2026 status conference in Case No. 2022-01262144 is vacated. An Order to Show Cause re Dismissal is scheduled for <u>August 6, 2026 at 9:00 a.m.</u> in Department CX105. Plaintiff is ordered to appear. Failure to appear will result in dismissal of the entire action. If the entire action is dismissed before August 6, 2026, no appearances are required. Clerk to give notice.
8	Sandoval, et al. v. Heritage Plastering, Inc. 2024-01376278	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for approval of a \$390,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. In the March 19, 2026 order (ROA 141), the court stated that each plaintiff should state his or her anticipated total amount to be received (including for any individual claims and excluding any enhancement payment). Each plaintiff states his or her anticipated individual PAGA payment, and each states that he or she has entered into an individual settlement. Sandoval Decl. (ROA 155) ¶¶ 4, 5; Aguirre Decl. (ROA 151) ¶¶ 4, 5; Cruz Decl. (ROA 149) ¶¶ 4, 5. Each plaintiff states his or her individual settlement agreement "has been lodged with the Court under seal for the Court's review." Sandoval Decl. (ROA 155) ¶ 5; Aguirre Decl. (ROA 151) ¶ 5; Cruz Decl. (ROA 149) ¶ 5. Plaintiffs filed a Notice of Lodgment of Plaintiffs' Individual Settlement Agreements (ROA 157), but the court file does not contain any lodged agreements. In addition, the court declines to review the documents in camera, as all materials filed in support of plaintiffs' motion

		must be part of the court file for this action. If the parties contend the agreements are confidential, the parties should have lodged copies of the agreements conditionally under seal and filed a noticed motion to seal the documents before the June 25, 2026 hearing on this motion; if that remains the parties' position, the parties should promptly do so, as the court will not grant plaintiffs' motion—or make a decision regarding plaintiffs' requests for enhancement payments—until the agreements have been submitted to the court. The motion to seal should explain, <i>inter alia</i>, why plaintiffs' individual settlement agreements should be shielded from, e.g., the aggrieved employees whose interests plaintiffs purport to represent. <u>As to the proposed order and judgment (ROA 147):</u> 2. Counsel information should be removed from the caption page of the proposed order and judgment. 3. The settlement agreement, any amendment(s) thereto, and the notice letter (in English and Spanish) should be attached as exhibits to the proposed order and judgment. The hearing on plaintiffs' motion for approval is continued to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
9	Sheikh, et al. v. Surgical Care Affiliates, LLC 2022-01254790	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$3,450,000 class action and PAGA settlement. The court has the following questions and comments: 1. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply with applicable court rules may result in sanctions and/or an order striking the overlong brief.

		2. Was motion for final approval served on the LWDA? The proof of service (ROA 167) does not include the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents and how service was effected. 3. Plaintiff should state her total compensation to be received (including for any individual claims). 4. Has the deadline to opt-out, object and/or dispute for the remailed notices elapsed? If so, the administrator should state whether any exclusions, objections or disputes were received for the remailed notices. 5. Why did the class increase by 313 people? See Brief (ROA 169) at 2 n.2. 6. Per the amendment to the settlement agreement (§ 7.6), the parties must file with the court all disputes submitted by class members. The parties must file with the court the two "deficient" disputes referred to in paragraph 12 of the Forst Declaration, along with copies of the "cure of deficiency" letters. Forst Decl. § 12; see also Supp. Forst Decl. (ROA 178) § 5. 7. Plaintiff's counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 8. The "Lodestar Report" attached as Exhibit 4 to the Davies Declaration (ROA 174) is insufficient as each time entry must be separately identified by timekeeper, date, time spent and work performed. Plaintiff's counsel must submit copies of time records, billing statements, or other records contemporaneously documenting the work performed and time spent, including the specific tasks performed on the case, the time spent on each task, and the date each task was completed. 9. Plaintiff seeks \$19,911.14 in litigation costs. "Courier charges" and charges for "cumulative copies, faxes, scans, postage" are not recoverable and should be removed. Plaintiff's counsel should also provide additional information regarding the recoverability of the "database research fee," or remove it. 10. The court preliminarily approved administration costs not to exceed \$25,000. 2/26/26 Order (ROA 163) § 6. The class notice informed the class members and the aggrieved employees that the settlement administration costs would not exceed \$25,000. Forst Decl. (ROA 172) § 4 & Ex. A. The settlement administrator now seeks administration costs of \$27,000. Forst Decl. (ROA 172) § 20. As the notice has been sent, how do the parties propose to inform the class members and the aggrieved employees that the settlement administrator now seeks costs that exceed the amount
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		stated in the notice? In addition, the court notes that while plaintiff states the administrator’s “initial capped bid” of \$25,000 “was based on an estimate of 3,266” class members (Brief at 1 n.1), the parties and the administrator knew at least as of the preliminary approval motion that the class had more than 3,266 members (Brief at 2 n.2). 11. As to the proposed order and judgment (ROA 165): a. The proposed order and judgment should also address the PAGA settlement by identifying the Aggrieved Employees and the PAGA Period. b. The proposed order and judgment should state the number of valid disputes received. c. Paragraph 3 should identify the class members who opted-out by name. The reference to the Forst Declaration should be removed. d. The proposed order and judgment should include the following provision: “The parties, their counsel and the settlement administrator are ordered to administer the settlement in accordance with the terms of the settlement agreement.” e. The proposed order and judgment should include the following statement: “The court hereby enters judgment in accordance with the Settlement Agreement, the February 26, 2026 Order Granting Preliminary Approval (ROA 163), and this Order and Judgment.” f. The proposed order and judgment should state that the order and judgment will be posted on the settlement administrator’s website for at least 180 days. g. Should the motion for final approval be granted, the court will hold a final accounting hearing on a Thursday at 9:00 a.m. Paragraph 20 of the proposed order and judgment should be revised accordingly. The final accounting hearing should occur after the deadline for class members to cash their checks. Plaintiff shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and any amounts tendered to the State Controller’s Office under the unclaimed property law. The hearing on plaintiff’s motion for final approval is continued to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105 to enable the parties to address and respond to the above issues. A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. The parties shall provide redlined copies of any revised documents (e.g., revised proposed order).
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		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service. No earlier hearing date is available for this motion.
10	Padilla v. Surgical Care Affiliates, LLC, et al. 2024-01399066	<u>Status Conference in Padilla v. Surgical Care Affiliates, LLC, Case No. 2024-01399066</u> The court has reviewed the parties' joint status conference statement filed June 17, 2026 (ROA 74), and based thereon continues the June 25, 2026 status conference to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
11	Teffeteller v. Fitness International, LLC 2024-01407578	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$783,115 PAGA settlement. The court has the following questions and comments: 1. Were the supplemental motion papers submitted to the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. In the February 26, 2026 order (ROA 101), the court stated that the parties should provide the average, high and low individual PAGA payments. Plaintiff states the parties cannot do so at this time. Supp. Brief (ROA 104) at 14:3-9. This information is routinely provided with approval motions and the parties are ordered to provide it with the supplemental filing. Relatedly, plaintiff estimates the net settlement amount is approximately \$126,638.32. Supp. Brief at 15:13. Plaintiff states there are 20,326 aggrieved employees. <i>Id.</i> at 17:21. Is the estimated average individual PAGA payment \$6.23? 3. Paragraph 8 of the amendment to the settlement agreement should be revised (i) to specify the "Settlement" referred to in the first sentence, and (ii) to state that defendant will pay \$2,500 to plaintiff in addition to paying the \$785,115 Settlement Payment. Supp. Daugherty Decl. (ROA 106) Ex. 3; see also 2/26/26 Order (ROA 101) No. 6. 4. The "Releasees" provision in paragraph 10 of the amendment to the settlement agreement remains overbroad. See 2/26/26 Order (ROA 101) No. 7. It includes unrelated, ambiguous and/or unidentified third parties such

		as “agents, “insurers,” “and each of Defendant’s respective successors and predecessors in interest, subsidiaries, affiliates, parents and attorneys, and any individual or entity which could be liable as a joint-employer with Defendant.” 5. The “Covered Claims” provision in paragraph 12 of the amendment to the settlement agreement remains overbroad. See 2/26/26 Order (ROA 101) No. 10. Releases for aggrieved employees other than plaintiff should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. The following phrases should be removed: (i) “that were made, or could have been made,” and (ii) “or arising out of.” <u>As to the notice letter (Ex. 6 to Supp. Daugherty Decl.):</u> 6. The notice letter should be revised consistent with the above. 7. The word “Plaintiffs” in the second sentence of section III should be “Plaintiff.” 8. The notice letter should use the same terms as in the settlement agreement. E.g., “Covered Claims” rather than “Released Claims.” <u>As to the proposed order and judgment (Ex. 7 to Supp. Daugherty Decl.):</u> 9. The proposed order and judgment should be revised consistent with the above. 10. The proposed order and judgment should be submitted as a separate document with the settlement agreement and any amendments thereto and the notice letter attached as exhibits to the proposed order and judgment. The hearing on plaintiff’s motion for approval is continued to <u>November 5, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See also Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an “amended settlement agreement,” to streamline the court’s review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
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12	Tran, et al. v. Byram Healthcare Centers, Inc. 2023-01309069	<u>Plaintiffs' Motion to Amend Order and Judgment</u> Plaintiffs move to amend the February 26, 2026 order granting final approval of the class action and PAGA settlement in this case and the judgment thereon (ROA 195) (the "Order and Judgment") because the settlement administrator discovered following entry of the Order and Judgment that the gross settlement amount calculated pursuant to the escalator clause in the settlement agreement is lower than previously stated, i.e., the Order and Judgment states the gross settlement amount is \$896,166.35, but the settlement administrator subsequently discovered the gross settlement amount is \$887,287.36. Castro Decl. (ROA 210) ¶ 15. (While plaintiffs style their motion as a "renewed" motion for final approval, review of the motion papers makes clear plaintiffs seek to amend the Order and Judgment.) Plaintiffs' unopposed motion to amend the Order and Judgment to modify the gross settlement amount stated at page 2 line 13 of the Order and Judgment is granted. Plaintiffs state that other than modifying the gross settlement amount, the Order and Judgment should otherwise remain unchanged. To the contrary, as the gross settlement amount has decreased, the amount of attorneys' fees awarded to Class Counsel should also decrease proportionally. The Order and Judgment awarded Class Counsel \$291,666.67 in attorneys' fees based on a gross settlement amount of \$896,166.35 (i.e., 32.5% of \$896,166.35). The Order and Judgment shall be amended to modify the amount of attorneys' fees awarded to Class Counsel stated at page 2 line 16 to \$288,368.40 (i.e., 32.5% of \$887,287.36). The court will issue an amended order and judgment consistent with the above ruling. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
13	Doe, et al. v. Thompson, et al. 2023-01370866	<u>Attorney Raquel Y. Cooper's Motion to be Relieved as Counsel for Plaintiff John Doe 118</u> Attorney Raquel Y. Cooper moves to be relieved as counsel for plaintiff John Doe 118. The motion is denied. The moving papers (ROA 1049, 1066) state the motion hearing is June 18, 2026 at 2:00 p.m. The hearing was continued to June 25, 2026 at 2:00 p.m. ROA 1086. The court file does not contain a proof of service reflecting notice to plaintiff John Doe 118 of the June 25, 2026 hearing date. This denial is without prejudice to counsel refiling a motion that complies with Rule 3.1362 in all respects. Attorney Raquel Y. Cooper to give notice. <u>Motion to Seal Re: Plaintiff John Doe 118</u>

Plaintiffs move to seal the notice of motion and motion to be relieved, the supporting declaration, and the proposed order filed by Attorney Raquel Y. Cooper as to plaintiff John Doe 118. (Plaintiffs filed two copies of the motion to seal. ROA 1057, 1058.) The court file contains only one copy of the supporting declaration (ROA 1049), i.e., plaintiffs did not lodge an unredacted copy of the supporting declaration under seal nor did plaintiffs file a redacted copy of the supporting declaration. The court thus construes the motion as seeking to seal the notice of motion and motion to be relieved and the proposed order (ROA 1068, 1072). For the following reasons, the motion is granted in part and denied in part.

A party requesting that a court record be filed under seal “must file a motion or an application for an order sealing the record.” Cal. R. Ct. 2.551(b)(1). “The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” *Id.*

A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d).

An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. *Id.*

Plaintiffs seek to seal the notice of motion and motion to be relieved and the proposed order on the grounds that these documents “contain confidential and privileged attorney-client communications and private personal identifying information of” plaintiffs. Notice of Motion (ROA 1057) at 2:21-23.

Plaintiffs’ motion to seal in their entirety the notice of motion and motion to be relieved and the proposed order is denied. Plaintiffs have not demonstrated why information unrelated to privileged attorney-client communications and private personal identifying information of plaintiffs should be sealed, such as, e.g., the motion hearing date and time and the identity of counsel seeking to be relieved.

The motion is granted as to plaintiff John Doe 118’s_name and address stated in the notice of motion and motion and in Item Nos. 1 and 6 of the proposed order. In this case involving alleged sexual abuse, plaintiffs have sufficiently demonstrated overriding interests in plaintiffs’ privacy to overcome the right of public access to records, that those interests support the sealing of the records, and that a substantial probability exists that those interests will be prejudiced if the portions of the records identified in this order are

		not sealed. The proposed sealing is narrowly tailored as set forth in this order, and no less restrictive means exist to achieve the overriding interests. Plaintiffs to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed June 18, 2026 (ROA 1354). The status conference scheduled for June 25, 2026 at 2:00 p.m. in Department CX105 remains on calendar.
40 2:30 p.m.	Herrick v. TTE Technology, Inc. 2025-01535413	<u>Attorney Andrea R. Gold's Motion to Appear Pro Hac Vice</u> Attorney Andrea R. Gold moves to appear pro hac vice for plaintiff Stephan Herrick. For the following reasons, the application is denied without prejudice. "A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar at its San Francisco office." Cal. R. Ct. 9.40(c)(1). The proof of service (ROA 80) does not reflect service of the application on the State Bar of California at its San Francisco office (or anywhere), and the "Notice of Filing of Pro Hac Vice Application Acknowledgement Notice" (ROA 86) is not a proof of service. The application also does not contain any evidence the application fee has been paid. The Persinger Declaration attached to Attorney Gold's two (apparently identical) applications (ROA 85, 90) is missing Exhibit A, and the "Pro Hac Vice Application Acknowledgement Notice" attached to the "Notice of Filing of Pro Hac Vice Application Acknowledgement Notice" does not refer to payment of the fee. The proof of service (ROA 80) states that one of the documents served on plaintiff's and defendant's counsel was "Filing Fee of Six Hundred Dollars," but, as noted above, the proof of service does not include the State Bar of California. Attorney Gold's application is denied without prejudice to enable plaintiff to file another application that addresses the above deficiencies. Plaintiff to give notice.